

Subject Description Form

Subject Code	AF3513
Subject Title	Business Law
Credit Value	3
Level	3
Normal Duration	1-semester
Pre-requisite / Co-requisite/ Exclusion	None
Objectives	This subject enables students to analyze business problems by applying conceptual frameworks drawn from case law and legislation, demonstrate critical and creative thinking in the business setting, and identify and respond appropriately to ethical issues arising in the business settings.
Intended Learning Outcomes	Upon completion of the subject, students will be able to: - Identify and explain the core structural characteristics of the legal system in Hong Kong, including sources of law and the court system. - Identify legal issues and apply legal reasoning to resolve practical legal problems arising in the business setting, critically assess all alternative arguments in different business contexts. (BBA Outcome 3) - Organize written English answers to practical legal problems in a systematic and coherent manner. - Identify and critically evaluate ethical issues arising in policy initiatives in the Hong Kong business context. (BBA Outcome 11) - Identify and critically evaluate the fintech development on legal and regulatory framework in Hong Kong.
Subject Synopsis/ Indicative Syllabus	Legal Framework The Hong Kong legal framework: the Legislative Council and the judiciary; dispute resolution. Laws against Corruption. Anti-Money Laundering and Counter-Terrorist Financing. The Law of Contract Essentials of a valid contract; reasons for invalid or unenforceable contracts; terms of contract; discharge of contract and remedies; electronic contracts; the use of AI in Hong Kong legal environment. Sale of Goods Definition of goods; sale of goods contract; implied terms; remedies of the seller and buyer. Tort Negligence; contributory negligence; professional liability for careless misstatements; legal responsibility for words and conduct. Employment Law

	Contract of Service and Contract for Service, Employment Ordinance, Employees' Compensation Ordinance, Discrimination Ordinances in Hong Kong. Law of Commercial Associations Types of companies; formation and documents; nature of corporate personality; comparison between partnerships and incorporated associations. Agency Law Formation of an agency agreement; authority of an agent; duties of an agent; relationship of principal with third party; relationship of an agent with third party; termination of agency.						
Teaching/Learning Methodology	The subject will be taught through lectures and interactive seminars. Lectures will introduce legal principles, legislation, and case law. In the seminar, students will work in small groups on problem-solving activities.						
Assessment Method in Alignment with Intended Learning Outcomes	Specific assessment methods/tasks	% weighting	Intended subject learning outcomes to be assessed (Please tick as appropriate)				
			a	b	c	d	e
	Continuous Assessment	50%					
	1. Group assignments	15%	√	√	√	√	
	2. Individual essay on fintech development on legal and regulatory framework in HK	10%					√
	3. Participation	5%	√	√	√	√	
	4. Individual test	20%		√	√		
	5. Final Examination	50%	√	√	√		
	To reflect the significant technology content in this subject, 10% (or more) of the overall weighting of this subject is based on individual assessment concerning technology-related knowledge.						
Student Study Effort Expected	Class contact:						
	• Lectures				13 Hrs.		
	• Seminars				26 Hrs.		
	Other student study effort:						
	• Reading materials/ textbook				52 Hrs.		
	• Group Assignments and Individual Test				20 Hrs.		
	Total student study effort				111 Hrs.		
Reading List and References	Textbook Srivastava, D.K., <i>Business Law in Hong Kong</i> , latest edn, Sweet & Maxwell						

	Reference book Anjunan, K. & Majid, A. (2009), <i>Business Law in Hong Kong</i>, 2nd edn, Lexis Nexis Stott, V (2010), <i>An Introduction to Hong Kong Business Law</i>, 4th edn, Prentice Hall Pearson Legislation The Laws of Hong Kong http://www.elegislation.gov.hk Law Reports Hong Kong Law Reports Hong Kong Law Reports and Digests Hong Kong Cases HK Electronic Citations (Westlaw)
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